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ATTORNEY FOR (*name*): Petitioner, HYUN JU MINTON

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ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
05/08/2024
Clerk of the Court
BY: MICHAEL RAYRAY
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
STREET ADDRESS: 400 McAllister St.
MAILING ADDRESS: 400 McAllister St.
CITY AND ZIP CODE: San Francisco, CA 94102-4514
BRANCH NAME: Civic Center Courthouse

DEPARTMENT: 204
Hearing: 06/11/2024 9:00 am

ESTATE OF (*name*): TAE JUNG KIM
DECEDENT

CASE NUMBER: **PES-24-307296**

PETITION FOR
- [ ] **Probate of** [ ] **Lost Will and for Letters Testamentary**
- [ ] **Probate of** [ ] **Lost Will and for Letters of Administration with Will Annexed**
- [x] **Letters of Administration**
- [ ] **Letters of Special Administration** [ ] **with general powers**
- [x] **Authorization to Administer Under the Independent Administration of Estates Act** [ ] **with limited authority**

HEARING DATE AND TIME: DEPT.: 204

1. Publication will be in (*specify name of newspaper*): San Francisco Daily Journal
   a. [ ] Publication requested.
   b. [x] Publication to be arranged.
2. **Petitioner** (*name each*):
   Hyun Ju Minton

   requests that
   a. [ ] decedent's will and codicils, if any, be admitted to probate.
   b. (*name*): Hyun Ju Minton be appointed
      (1) [ ] executor
      (2) [ ] administrator with will annexed
      (3) [x] administrator
      (4) [ ] special administrator [ ] with general powers
      and Letters issue upon qualification.
   c. [x] full [ ] limited authority be granted to administer under the Independent Administration of Estates Act.
   d. (1) [ ] bond not be required for the reasons stated in item 3e.
      (2) [x] $409,469 bond be fixed. The bond will be furnished by an admitted surety insurer or as otherwise provided by law. (*Specify reasons in Attachment 2 if the amount is different from the maximum required by Prob. Code, § 8482.*)
      (3) [ ] $ in deposits in a blocked account be allowed. Receipts will be filed.
      (*Specify institution and location*):

3. a. Decedent died on (*date*): September 23, 2023 at (*place*): Virginia Hospital Center, Arlington, VA
      (1) [x] a resident of the county named above.
      (2) [ ] a nonresident of California and left an estate in the county named above located at (*specify location permitting publication in the newspaper named in item 1*):

   b. [ ] Decedent was a citizen of a country other than the United States (*specify country*): .
   c. Street address, city, and county of decedent's residence at time of death (*specify*):
      15 Teresita Blvd., #7, San Francisco, CA 94127-1240
      San Francisco County

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3. d. **Character and estimated value of the property of the estate** *(complete in all cases):*
   (1) Personal property: $35,000
   (2) Annual gross income from
      (a) real property: $
      (b) personal property: $
   (3) **Subtotal** *(add (1) and (2)):* $ 35,000
   (4) Gross fair market value of real property: $ 878,100
   (5) (Less) Encumbrances: ($ 503,631)
   (6) Net value of real property: $ 374,469
   (7) **Total** *(add (3) and (6)):* $ 409,469

   e. (1) ☐ Will waives bond. ☐ Special administrator is the named executor, and the will waives bond.
   (2) ☐ All beneficiaries are adults and have waived bond, and the will does not require a bond. *(Affix waiver as Attachment 3e(2).)*
   (3) ☐ All heirs at law are adults and have waived bond. *(Affix waiver as Attachment 3e(3).)*
   (4) ☐ Sole personal representative is a corporate fiduciary or an exempt government agency.

   f. (1) ☒ Decedent died intestate.
   (2) ☐ Copy of decedent's will dated: ☐ codicil dated *(specify for each):*

   are affixed as Attachment 3f(2). *(Include typed copies of handwritten documents and English translations of foreign-language documents.)*
   ☐ The will and all codicils are self-proving (Prob. Code, § 8220).
   (3) ☐ The original of the will and/or codicil identified above has been lost. *(Affix a copy of the lost will or codicil or a written statement of the testamentary words or their substance in Attachment 3f(3), and state reasons in that attachment why the presumption in Prob. Code, § 6124 does not apply.)*

   g. **Appointment of personal representative** *(check all applicable boxes):*
   (1) Appointment of executor or administrator with will annexed:
      (a) ☐ Proposed executor is named as executor in the will and consents to act.
      (b) ☐ No executor is named in the will.
      (c) ☐ Proposed personal representative is a nominee of a person entitled to Letters. *(Affix nomination as Attachment 3g(1)(c).)*
      (d) ☐ Other named executors will not act because of ☐ death ☐ declination
      ☐ other reasons *(specify):*

      ☐ Continued in Attachment 3g(1)(d).
   (2) Appointment of administrator:
      (a) ☒ Petitioner is a person entitled to Letters. *(If necessary, explain priority in Attachment 3g(2)(a).)*
      (b) ☐ Petitioner is a nominee of a person entitled to Letters. *(Affix nomination as Attachment 3g(2)(b).)*
      (c) ☒ Petitioner is related to the decedent as *(specify):* Sibling
   (3) ☐ Appointment of special administrator requested. *(Specify grounds and requested powers in Attachment 3g(3).)*
   (4) ☐ Proposed personal representative would be a successor personal representative.

   h. Proposed personal representative is a
   (1) ☐ resident of California.
   (2) ☒ nonresident of California *(specify permanent address):*

   6 Socrates Way, Winchester, MA 01890

   (3) ☒ resident of the United States.
   (4) ☐ nonresident of the United States.

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4. [ ] Decedent's will does not preclude administration of this estate under the Independent Administration of Estates Act.
5. a. Decedent was survived by *(check items (1) or (2), and (3) or (4), and (5) or (6), and (7) or (8))*
   (1) [ ] spouse.
   (2) [x] no spouse as follows:
      (a) [x] divorced or never married.
      (b) [ ] spouse deceased.
   (3) [ ] registered domestic partner.
   (4) [x] no registered domestic partner. *(See Fam. Code, § 297.5(c); Prob. Code, §§ 37(b), 6401(c), and 6402.)*
   (5) [ ] child as follows:
      (a) [ ] natural or adopted.
      (b) [ ] natural adopted by a third party.
   (6) [x] no child.
   (7) [ ] issue of a predeceased child.
   (8) [x] no issue of a predeceased child.

   b. Decedent [ ] was [x] was not survived by a stepchild or foster child or children who would have been adopted by decedent but for a legal barrier. *(See Prob. Code, § 6454.)*
6. *(Complete if decedent was survived by (1) a spouse or registered domestic partner but no issue (only **a** or **b** apply), or (2) no spouse, registered domestic partner, or issue. (Check the **first** box that applies):*
   a. [x] Decedent was survived by a parent or parents who are listed in item 8.
   b. [ ] Decedent was survived by issue of deceased parents, all of whom are listed in item 8.
   c. [ ] Decedent was survived by a grandparent or grandparents who are listed in item 8.
   d. [ ] Decedent was survived by issue of grandparents, all of whom are listed in item 8.
   e. [ ] Decedent was survived by issue of a predeceased spouse, all of whom are listed in item 8.
   f. [ ] Decedent was survived by next of kin, all of whom are listed in item 8.
   g. [ ] Decedent was survived by parents of a predeceased spouse or issue of those parents, if both are predeceased, all of whom are listed in item 8.
   h. [ ] Decedent was survived by no known next of kin.
7. *(Complete only if no spouse or issue survived decedent.)*
   a. [x] Decedent had no predeceased spouse.
   b. [ ] Decedent had a predeceased spouse who
      (1) [ ] died not more than 15 years before decedent and who owned an interest in **real property** that passed to decedent,
      (2) [ ] died not more than five years before decedent and who owned **personal property** valued at $10,000 or more that passed to decedent, *(If you checked (1) or (2), check only the **first** box that applies):*
         (a) [ ] Decedent was survived by issue of a predeceased spouse, all of whom are listed in item 8.
         (b) [ ] Decedent was survived by a parent or parents of the predeceased spouse who are listed in item 8.
         (c) [ ] Decedent was survived by issue of a parent of the predeceased spouse, all of whom are listed in item 8.
         (d) [ ] Decedent was survived by next of kin of the decedent, all of whom are listed in item 8.
         (e) [ ] Decedent was survived by next of kin of the predeceased spouse, all of whom are listed in item 8.
      (3) [ ] neither (1) nor (2) apply.
8. Listed on the next page are the names, relationships to decedent, ages, and addresses, so far as known to or reasonably ascertainable by petitioner, of (1) all persons mentioned in decedent's will or any codicil, whether living or deceased; (2) all persons named or checked in items 2, 5, 6, and 7; and (3) all beneficiaries of a trust named in decedent's will or any codicil in which the trustee and personal representative are the same person.

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8.

Name and relationship to decedent	Age	Address
Bok Za Kim Parent and Beneficiary	Adult	93 Hazen Road Shirley, MA 01464

☐ Continued on Attachment 8.

9. Number of pages attached: 1

Date: 5/7/2024

Shawn R. Loring
(TYPE OR PRINT NAME OF ATTORNEY)

Shawn R. Loring
(SIGNATURE OF ATTORNEY) *

* (Signatures of all petitioners are also required. All petitioners must sign, but the petition may be verified by any one of them (Prob. Code, §§ 1020, 1021; Cal. Rules of Court, rule 7.103).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 5/6/2024

Hyun Ju Minton
(TYPE OR PRINT NAME OF PETITIONER)

(SIGNATURE OF PETITIONER)

(TYPE OR PRINT NAME OF PETITIONER)

(SIGNATURE OF PETITIONER)

Signatures of additional petitioners follow last attachment.

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SHORT TITLE: Estate of Tae Jung Kim	CASE NUMBER:

ATTACHMENT *(Number):* 3g(2)(a)

(This Attachment may be used with any Judicial Council form.)

Petitioner, Hyun Ju Minton, is a person entitled to Letters because she is the sibling of the Decedent, Tae Jing Kim.

Decedent was not survived by a spouse or children. Decedent was survived by his mother, who has been declared incapacitated and is therefore unable to act. As a result, Petitioner is the person with highest priority for appoint as administrator. Cal. Prob. Code §§ 8461(f).

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)